

[10 & 11 GEO. 5.]

*Alloa Water Order
Confirmation Act, 1920.*

[Ch. cxxxvii.]



CHAPTER cxxxvii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Alloa Water. A.D. 1920.
—
[16th August 1920.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Alloa Water Order Confirmation Act 1920. Short title.

A.D. 1920.

SCHEDULE.

ALLOA WATER.

Provisional Order to authorise the provost magistrates and councillors of the burgh of Alloa to borrow further moneys for their water undertaking and for other purposes.

WHEREAS by the Act forty-three George the Third chapter fifty-five entitled "An Act to amend an Act made in the twenty-sixth year of the reign of His present Majesty for the improvement of the Harbour of Alloa; for paving cleansing and lighting the Town of Alloa; and for other purposes therein mentioned" (hereinafter referred to as "the Act of 1803") trustees were therein appointed for the purpose inter alia of procuring a supply of water for the town of Alloa:

And whereas by a deed of grant dated the second day of March one thousand eight hundred and three executed by the then proprietors of the estate of Mar in favour of the said town of Alloa power and liberty was given and granted to the said trustees to take for the use of the inhabitants of the said town a supply of water as therein set forth and the said trustees under the said Act brought in a supply of water to the town of Alloa:

And whereas various other water rights have from time to time been granted by the proprietors of the said estate in favour of the said trustees and the commissioners of police after mentioned:

And whereas under the Act thirteen and fourteen Victoria chapter thirty-three entitled "An Act to make more effectual provision for regulating the police of towns and populous places in Scotland and for paving draining cleansing lighting and improving the same" the boundaries of the burgh of Alloa were marked out and defined by a deliverance of the sheriff dated the twenty-seventh day of December one thousand eight hundred and fifty-three and the said Act was thereafter on the nineteenth day of January one thousand eight hundred and fifty-four adopted and put in force within the burgh of Alloa and commissioners of police were appointed in virtue of the said Act:

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And whereas the General Police and Improvement (Scotland) Act 1862 was adopted and in force within the burgh of Alloa and the commissioners of police of the said burgh were commissioners of police under the said Act until its repeal when they became commissioners under the Burgh Police (Scotland) Act 1892 :

And whereas the trustees acting under the Act of 1803 by deed of transfer dated the twenty-fifth twenty-eighth and thirtieth days of August one thousand eight hundred and fifty-four transferred to the commissioners of police all their rights inter alia in relation to the supply of water to the burgh together with the reservoirs waterworks pipes wells and whole plant and property belonging to them and the said commissioners and their successors as hereinafter mentioned have since that date continued to supply water to the town of Alloa :

And whereas by the Alloa Water Act 1891 (in this Order referred to as "the Act of 1891") the said commissioners were authorised to construct additional waterworks for the better supply of water to the burgh and for that purpose to borrow certain moneys :

And whereas the affairs of the burgh including the water undertaking of the commissioners became vested in the provost magistrates and councillors of the burgh of Alloa (in this Order referred to as "the town council" and "the burgh" respectively) under and by virtue of the Town Councils (Scotland) Act 1900 and the said water undertaking is now managed and maintained by them :

And whereas in consequence of the increase of population and the industrial development of the burgh the present supply of water has become insufficient and the town council will in the near future require to expend the sum of twenty-five thousand pounds for the purpose of affording a better supply by constructing and providing new filters mains and pipes and the town council will also require in the near future to expend a large sum of money in the renewal of existing mains and pipes and for other purposes of their water undertaking and it is expedient to authorise the town council to borrow additional money to meet such expenditure

And whereas the several works intended to be carried out by the town council are permanent works and it is expedient that the cost thereof should be spread over a term of years :

A.D. 1920.

And whereas it is expedient to increase the amount of the public water rate which the town council are authorised to levy under and by virtue of the Act of 1891:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short title.

1. This Order may be cited as the Alloa Water Order 1920.

Commence-
ment of
Order.

2. This Order shall commence and have effect on and after the date of passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.”

Interpre-
tation.

3. In this Order the several words and expressions to which meanings are assigned by the Acts incorporated therewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction In this Order unless the context otherwise requires:—

“The burgh” means the burgh of Alloa;

“The Town Council” means the provost magistrates and councillors of the burgh for the time being;

“The Act of 1891” means the Alloa Water Act 1891.

Incorporation
of Acts.

4. The following Acts or parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order:—

The Commissioners Clauses Act 1847 with respect to the mortgages to be executed by the commissioners (except clauses 84 86 and 87):

The Waterworks Clauses Acts 1847 and 1863 except—

(a) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in clause 44 of the Waterworks Clauses Act 1847;

(b) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts;

This Order shall be deemed a special Act within the meaning of the provisions of the said Acts wholly or partially incorporated herewith. A.D. 1920.

5. The Town Council may from time to time subject to the provisions of this Order borrow any sums of money required for the improvement of their water undertaking by the construction and provision of new filters mains and pipes not exceeding twenty-five thousand pounds and with the sanction of the Secretary for Scotland but not otherwise such further sums not exceeding twenty-five thousand pounds as may be requisite for the said improvement or for the general purposes of their water undertaking including the renewal of existing mains and pipes and the Town Council may also borrow such further sum as may be required for the payment of the costs charges and expenses of and incidental to the obtaining and confirming of this Order and the Town Council may make and grant mortgages or other securities of the several rates rents and charges authorised by the Act of 1891 and this Order in security of the money so borrowed and interest thereon and any sums so to be borrowed may be borrowed on terms of the repayment thereof by annuity instalment or otherwise The Secretary for Scotland shall have and may exercise in relation to such sanction as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889. *Power to borrow.

6. The Town Council shall pay off all moneys to be borrowed by them under the powers of this Order within the respective periods following (that is to say):— Periods for repayment of borrowed money.

As to moneys to be borrowed for the improvement of the water undertaking by the construction and provision of new filters mains and pipes and as to the moneys to be borrowed with the sanction of the Secretary for Scotland within forty years from the date or dates of borrowing the same if repayment be made by means of a non-accumulating sinking fund or by means of equal instalments of principal and within thirty years if repayment be made by means of an accumulating sinking fund or by means of equal instalments of principal and interest combined ;

As to money to be borrowed for paying the costs charges and expenses of this Order and of the confirmation thereof within five years from the commencement of this Order.

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Mode of
repayment
of borrowed
moneys.

7. The Town Council shall pay off all moneys borrowed by them (other than money borrowed for current expenses) under this Order either by means of a sinking fund formed under the provisions of this Order or by equal yearly or half yearly instalments of principal or of principal and interest combined or partly by one of those methods and partly by another or others of them.

Power to
re-borrow.

8. If after having borrowed the sums of money by this Order authorised or any part thereof the Town Council shall pay off the same or any part thereof otherwise than by means of annuities or instalments or of the sinking fund hereinafter mentioned or out of moneys derived from the sale of land it shall be lawful for the Town Council again to borrow the amount so paid off upon the same securities as those upon which the moneys so paid off were secured and so from time to time.

Application
of sections
of Act of
1891.

9. The following sections of the Act of 1891 shall so far as the same are applicable extend and apply to and for the purposes of this Order and to the Town Council as if the same with any necessary alterations were re-enacted in this Order (that is to say):—

Section 73 (Commissioners may borrow on cash account);

Section 74 (Borrowing power for current expenses);

Section 75 (Form of mortgage);

Section 76 (Manner in which mortgages and orders on bank account are to be signed);

Section 77 (Transfer of mortgages);

Section 78 (Transmission of mortgages in case of bankruptcy);

Section 79 (Mortgages of rates to be personal estate);

Section 80 (Discharge of mortgages).

Sinking
fund.

10.—(1) If the Town Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Order such sinking fund shall be formed or maintained either—

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so

formed is hereinafter called a non-accumulating sinking fund; or A.D. 1920.

- (b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority other than the Town Council or be deposited in bank the Town Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Town Council towards the equal annual payments to the fund.

(4) The Town Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Town Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Town Council.

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(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the Town Council in addition to the payments provided for by this Order.

(7) If it appears to the Secretary for Scotland or to the Town Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Town Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(8) If the Town Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Town Council be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Town Council may with the consent of the Secretary for Scotland reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Town Council be sufficient to repay the loan in respect of which it is

formed within the prescribed period the Town Council may with the consent of the Secretary for Scotland discontinue the annual payments to such sinking fund. A.D. 1920.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Town Council may determine.

(12) The period at which the payments into the sinking fund shall commence shall be within one year from the date of borrowing.

11. The treasurer of the Town Council shall within four months after the expiration of each year during which any sum is required to be paid as an instalment or to be set apart for a sinking fund under this Order transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so paid or set apart in respect of that year and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return such treasurer so making default shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable. If it appear to the Secretary for Scotland by any such return or otherwise that the Town Council have failed to pay any instalment or to set apart the sum required by this Order to be set apart for the sinking fund or to make any increased payment thereto by this Order required or have applied any portion of the moneys set apart for that fund or any interest or income thereof to any purposes other than those authorised by this Order the Secretary for Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such Order shall be enforceable by decree of either division of the inner house of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

Annual
return to
Secretary
for Scotland
with respect
to sinking
fund.

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Application
of moneys
borrowed.

12. All sums borrowed by the Town Council under this Order on mortgage or cash account or otherwise (except any sums borrowed for current expenses) shall be applied only to purposes to which capital is properly applicable.

Reservation
of prior
mortgages.

13. Nothing in this Order shall prejudice or affect the priority or other rights or remedies under any mortgages or securities or obligations granted by the Town Council before the commencement of this Order and then subsisting.

Protection
of lender
from inquiry.

14. No person lending money to the Town Council shall be bound to inquire as to the observance by the Town Council of any provision of this Order or be bound to see to the application or be answerable for any loss or non-application of such money or any part thereof.

As to judicial
factor.

15.—(1) Section 85 (Appointment of judicial factor) and section 86 (Powers and duties of judicial factor) of the Act of 1891 are hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings pending at the passing of this Order under any such provisions.

(2) The mortgagees of the Town Council may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor and in order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than one thousand pounds in the whole.

Supply of
water for
other than
domestic
purposes.

16. Notwithstanding anything contained in section 32 (Commissioners may supply water for other than domestic purposes) of the Act of 1891 the Town Council may furnish to any person within the limits of that Act a supply of water for horses and for washing carriages and motor vehicles whether such horses carriages or motor vehicles are kept for hire or are the property of a dealer or not subject to the provisions as to rates charges and otherwise in that section contained.

As to public
water rate.

17. Section 50 (Public water rate to be levied) of the Act of 1891 shall be read and have effect as if the word "fivepence" had been inserted therein in lieu of the word "twopence" as the maximum of the public water rate by that section authorised to be levied.

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18. The costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Town Council out of the assessments or rates to be levied or out of moneys to be borrowed under this Order.

A.D. 1920.
Costs of
Order.

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